

SENATE No. 1059

The Commonwealth of Massachusetts

PRESENTED BY:

Brendan P. Crighton

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the integrity of state data systems.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/28/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>1/26/2026</i>

SENATE No. 1059

By Mr. Crighton, a petition (accompanied by bill, Senate, No. 1059) of Brendan P. Crighton and Lindsay N. Sabadosa for legislation relative to access to justice. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 941 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the integrity of state data systems.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 167 of chapter 6 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after definition of “Criminal justice agencies”
3 the following definition:-

4 “Criminal justice duties”, those duties described in the definition of criminal justice
5 agency which the specific agency is authorized by law to perform, and which an individual is
6 authorized by the agency to perform in their official capacity. Criminal justice duties shall also
7 include use of the criminal justice information system for criminal justice employment and
8 background checks as well as licensing where the criminal justice agency is the licensing
9 authority. Criminal justice duties shall not include duties for the purpose of effectuating civil

arrests or initiating, investigating, prosecuting, or otherwise pursuing civil or administrative proceedings.

SECTION 2. Section 167A of said chapter 6, as so appearing, is hereby amended by inserting after clause (i) the following clause:-

(j) The department shall not disclose to any federal agency or permit any federal agency to access any files, data, or other information from the Massachusetts registry of motor vehicles for purposes of civil immigration enforcement, provided that information concerning a particular identified individual may be disclosed upon receipt of a valid probable cause warrant signed by a judge. The attorney general is authorized to bring an action in state or federal court to quash, modify, or otherwise contest any demand for information not in accordance with the requirements of this paragraph.

SECTION 3. Said section 172 of said chapter 6, as so appearing, is hereby further amended by inserting, in line 161, after the word “databases” the following words:- ; provided that criminal offender record information shall not be accessed or disclosed for any non-criminal justice purpose, including civil enforcement duties; and further provided that the director of any such federal agency has certified in writing subject to penalty of perjury that such database is used solely for the performance of criminal justice duties and the department has taken reasonable steps to confirm the accuracy of such certification to its satisfaction.